STANDARD OPERATING PROCEDURE			P-5600	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED **12/09/14**	DATE REVISED	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL		RESOURCES N.R.S 53-1121		
SUBJECT CIVIL PROTECTIVE CUSTODY (CPC)		CROSS REFERENCE		

I. Purpose:

The purpose of this policy is to establish procedures for dealing with intoxicated and/or incapacitated persons who deputies deem to be a danger to themselves or others.

II. Policy:

The Sarpy County Sheriff's Office shall investigate and take appropriate action in situations involving persons suspected of being intoxicated, incapacitated, and dangerous per procedures granted in Nebraska Revised Statute 53-1,121.

III. Definitions:

A. Public Property: Any public right of way, street, highway, alley, park, or other state, county, or municipally owned property.

B. Quasi-Public Property: Private or publicly owned property utilized for proprietary or business uses which invites patronage by the public or which invites public ingress and egress.

C. Nebraska Revised Statute 53-1,121:
City police, county sheriffs, officers of the Nebraska State Patrol, and any other such law enforcement officer with power to arrest for traffic violations may take a person who is intoxicated and in the judgment of the officer dangerous to himself, herself, or others, or who is otherwise incapacitated, from any public or quasi-public property. An officer removing an intoxicated person from public or quasi-public property shall make a reasonable effort to take such intoxicated person to his or her home or to place such person in any hospital, clinic, alcoholism center, or with a medical doctor as may be necessary to preserve life or to prevent injury. Such effort at placement shall be deemed reasonable if the officer contacts those facilities or doctors which have previously represented a willingness to accept and

treat such individuals and which regularly do accept such individuals. If such efforts are unsuccessful or are not feasible, officers may then place the intoxicated person in civil protective custody, except that civil protective custody shall be used only as long as it is necessary to preserve life or to prevent injury and under no circumstances for longer than twenty-four (24) hours.

The placement of such person in civil protective custody shall be recorded at the facility to which he or she is delivered and communicated to his or her family or next of kin, if they can be located, or to such person designated by the person taken into civil protective custody.

The law enforcement officer who acts in compliance with this section shall be deemed to be acting in the course of his or her official duty and shall not be criminally or civilly liable for such actions.

The taking of an individual into civil protective custody under this policy shall not be considered an arrest. No entry or other record shall be made to indicate that the person has been arrested or charged with a crime.

IV. Procedure:

A. When a deputy has contact with an intoxicated or otherwise incapacitated person, the deputy may place the person in civil protective custody (CPC) if:

1. The deputy deems the person is dangerous to himself, herself, or others; and,

2. The person is on public or quasi-public property; and,

3. Other reasonable efforts (see Section IV, C and D) for handling the person are unsuccessful or are not feasible.

B. The deputy shall determine if the person needs medical attention and shall take appropriate action if necessary. Deputies have the authority to summon medical aid for transport to a medical facility if the person appears to be ill or injured.

C. No Violation of State Statute:

1. The deputy shall make a reasonable effort to take the person home if he or she lives within a reasonable distance and a responsible adult can provide care for the person. The deputy may also release the person to a hospital, a clinic or a medical doctor. A shift supervisor or a commander must approve this action.

2. If the above options are unsuccessful or not feasible, the deputy shall place the person in CPC and transport him or her to Campus of Hope.

D. Violation of State Statute:

1. If an intoxicated or incapacitated person commits a misdemeanor crime, the deputy may issue a citation and release him or her per SOP P-4700.

2. The deputy shall then make a reasonable effort to take the person home if he or she lives within a reasonable distance and a responsible adult can provide care for the person. The deputy may also release the person to a hospital, a clinic or a medical doctor. A shift supervisor or a commander must approve this action.

3. If the above options are unsuccessful or not feasible, the deputy shall place the person in CPC and transport him or her to Campus of Hope.

E. Law enforcement officers are only allowed to place someone into CPC if he or she is contacted on public or quasi-public property (see above for definitions) per §53-1,121. If contact with the person is made on property that is not public or quasi-public, the deputy shall consider other options such as emergency protective custody, placing the person with a responsible adult, or any other viable option. A shift supervisor or a commander must approve this action.

F. Deputies will check NCIC, NCIS and local warrants for any wants on the person before releasing him or her to a medical doctor, a responsible adult or a facility (e.g., hospital, clinic or Campus of Hope).

G. If the person meets the criteria for CPC, the deputy may transport the person to Catholic Charities Omaha Campus for Hope, 1490 N. 16th Street, Omaha, NE, (402) 827-0570. Upon arrival at Campus for Hope, the deputy shall:

1. Complete the Campus of Hope CPC paperwork.

2. Complete an Incident Report. The deputy shall attach a copy of the Campus of Hope CPC paperwork to his or her Incident Report.